

See also: The US Constitution and Bill of Rights 110–117 ■ The exclusionary rule 186–187 ■ *Miranda v. Arizona* 254–255 ■ *Roe v. Wade* 260–263

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The judicial Power of the United States shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish.

US Constitution
Article III, Section 1

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agenda and shift the balance of power toward the judiciary. As a result, *Marbury* did not receive his commission. He took secretary of state James Madison to court, asking that the Supreme Court issue a writ of mandamus (an order to a lower court or official to fulfill their public duty) to compel Madison to grant the commission.

Chief Justice Marshall delivered his verdict against *Marbury*. He agreed that *Marbury* was legally entitled to his commission but declared that the Supreme Court did not have the power to issue the writ of mandamus—because, in requiring the Supreme Court to do so, Congress had expanded the original jurisdiction of the Court, and this was in violation of the Constitution. This ruling positioned the Constitution as the supreme law of the land and the Supreme Court as the body that interpreted it. It defined the power of judicial review, setting a precedent that has stood the test of time.

Marshall has been praised by commentators for his deft handling of the case. His strategic decision built on the existing concept of judicial review—which, while not written into law, had been accepted by most framers of the Constitution as necessary. (Founding Father Alexander Hamilton wrote in 1788 that “the Constitution ought to be preferred to the statute, the intention of the people to the intention of their agents.”) Marshall, in his ruling, explained that by creating a written constitution, the US had defined the limits of powers for the different departments of government, and that the Constitution would mean nothing “if these limits may, at any time, be passed by those intended to be restrained.”

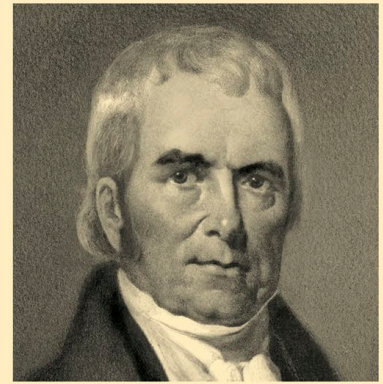
The impact of this fairly obscure case was immense. While ensuring that the original jurisdiction of the Supreme Court was not expanded, Marshall had, as a result, centered its focus on appellate jurisdiction: the power of the Court to review, amend, or overrule the decision of a lower court. This asserted the power of the Supreme Court as a co-equal branch of government. »

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It is emphatically the province and duty of the judicial department to say what the law is.

John Marshall
***Marbury v. Madison*, 1803**

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John Marshall

Born in Virginia in 1755, John Marshall was the eldest of 15 children. He served during the Revolutionary War, then left the army in 1780 to study law. He quickly gained a reputation for measured decisions, and soon became involved in government. He was a strong advocate for the ratification of the new US Constitution—this replaced the Articles of Confederation, which had lacked provision for a judicial or an executive branch of government.

In 1800, Marshall became secretary of state under John Adams. A year later, he was appointed chief justice of the Supreme Court—a position he held until his death in 1835. In this role, he presided over numerous key cases that, over time, defined the powers of the Court. These included *McCulloch v. Maryland* (1819), in which Marshall ruled that the federal government had the right to open a national bank, and *Cohens v. Virginia* (1821), which established that the Supreme Court had jurisdiction to rule on all state court judgments that challenged the Constitution.